

25STCV00797 25STCV00797

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-09-17

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Case Number: 25STCV00797 Hearing Date: September 17, 2026 Dept: 309

Superior

Court of California

County of Los Angeles

DEPARTMENT

17

TENTATIVE

RULING

RANSON

ALMEIDA

vs.

SOUTH

BAY AVIATION, INC.

Case No.: 25STCV00797

Hearing

Date: September 17, 2026

Plaintiff's

motion for leave to file an amended complaint is GRANTED.

On 1/13/2025,

Plaintiff Ranson Almeida (Plaintiff) filed suit against South Bay Aviation, Inc. (Defendant), alleging: (1) Fair Employment and Housing Act (FEHA); and (2) Military and Veterans Code section 394.

On

6/24/2026, Plaintiff moved for leave to amend to file a first amended complaint (FAC) to include a third cause of action for violation of the Uniformed Services Employment and Reemployment Rights Act (USERRA).

Discussion

Plaintiff

seeks leave to amend to file an updated complaint to include a third cause of action for violation of the USERRA.

The policy favoring leave to amend is so strong that it is an abuse of discretion to deny an amendment unless the adverse party can show meaningful prejudice. (Atkinson v. Elk Corp. (2003) 109 Cal.App.4th 739, 761.)

Here, this case is in its infancy and no trial date has been set. As such, the Court finds inadequate evidence of prejudice to justify denying leave to amend.

Based on the foregoing, Plaintiff's motion for leave to file an amended complaint is granted.

It is so ordered.

Dated: September
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must

send an email to the court at smcdept17@lacourt.org
by 4 p.m. the day prior as directed by the instructions provided on the court
website at www.lacourt.org. If a party submits
on the tentative, the party's email must include the case number and must
identify the party submitting on the tentative.
If all parties to a motion submit, the court will adopt this
tentative as the final order. If the department
does not receive an email indicating the parties are submitting on the
tentative and there are no appearances at the hearing, the motion may be placed
off calendar. For more information, please contact the court clerk at (213)
633-0517.